IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

Applicant / Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/562,825
Filing Date:	March 11, 2026
Confirmation Number:	2233
Art Unit / Examiner:	TC 2100 / ANDREA BENNETT
Office of Petitions:	Charles Steven Brantley, Attorney Advisor
Customer Number:	226458
Entity Status:	SMALL ENTITY (37 CFR § 1.27)
Title of Invention:	SYSTEM FOR AN OPTICALLY-NATIVE CENTRAL PROCESSING UNIT

APPLICANT RESPONSE TO NOTICE OF INCOMPLETE REPLY
(37 CFR § 1.53(b))
(SUBMISSION OF REPLACEMENT CLAIMS, REPLACEMENT ABSTRACT, FULL FEE REMITTANCE, EXTENSION PETITION, AND CONDITIONAL SUSPENSION)

Mail Stop Missing Parts
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In responsive reply to the *Notice of Incomplete Reply* mailed August 7, 2026, and the *Decision on Petition* (PETDEC) mailed October 8, 2026, the pro se Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this complete formalities response.

I. STATEMENT OF REAFFIRMED ENTITY STATUS (37 CFR § 1.27)

Applicant hereby formally reaffirms entitlement to **Small Entity status** under 37 CFR § 1.27 and 35 U.S.C. § 123. Applicant's verified Statement of Small Entity Status was filed on July 31, 2026, and officially recognized on the docket by the Office. All statutory fees are computed strictly under the Small Entity schedule.

II. CURING OF FORMALITY DEFECTS & COMPLETE ITEMIZED SUBMISSIONS

To bring the application into 100% compliance with USPTO pre-examination requirements, Applicant concurrently submits the following standalone statutory papers in this electronic submission envelope:

1. **Standalone Replacement Claims (37 CFR § 1.75(h), § 1.121, § 1.126) [Patent Center Description: "Claims"]:**
   Applicant submits clean replacement Claims 1–5 commencing on a separate sheet, formatted in strict double line spacing pursuant to 37 CFR § 1.52(b)(2)(i), consecutively numbered in Arabic numerals without duplication, under the pure statutory heading "CLAIMS" and introductory phrase "What is claimed is:".

2. **Standalone Replacement Abstract (37 CFR § 1.72(b), § 1.121) [Patent Center Description: "Abstract"]:**
   Applicant submits a clean replacement Abstract commencing on a separate sheet, formatted in strict double line spacing, under 150 words in length (104 words), under the pure statutory heading "ABSTRACT OF THE DISCLOSURE".

3. **Acknowledged Inventor's Declaration (37 CFR § 1.63) [Patent Center Description: "Oath or Declaration filed"]:**
   Applicant notes that an executed Inventor's Oath or Declaration under 37 CFR § 1.63 was filed on July 21, 2026, and acknowledged in the Image File Wrapper.

4. **Petition for Five-Month Extension of Time (37 CFR § 1.136(a)) [Patent Center Description: "Extension of Time"]:**
   Applicant submits a formal Petition for Extension of Time under 37 CFR § 1.136(a) for five (5) months. The original two-month reply period expired on June 8, 2026. A five-month extension extends the period to Sunday, November 8, 2026, which rolls automatically to **Monday, November 9, 2026** pursuant to 35 U.S.C. § 21 and 37 CFR § 1.7(a), as confirmed in the October 8, 2026 Decision on Petition.

5. **Conditional Request for Six-Month Suspension (37 CFR § 1.103(a)) [Patent Center Description: "Letter Requesting Suspension of Action"]:**
   Applicant submits a Conditional Request for Suspension of Action under 37 CFR § 1.103(a) (Fee Code 2830, $60.00), requesting that prosecution be suspended for six (6) months upon completion of pre-examination processing, due to ongoing federal civil rights and constitutional litigation in the United States District Court for the Southern District of Texas, Houston Division, Case No. 4:26-cv-08794 (Judge Kenneth M. Hoyt; Cause: 28:1983 Civil Rights, Nature of Suit: 440).

III. COMPREHENSIVE CURATION OF ALL FEE DEFICIENCIES, CONCURRENT STATUTORY REMITTANCE, AND FORMAL REFUND REQUEST (37 CFR § 1.26)

A. Item-by-Item Reconciliation and Full Payment of All Demanded Pre-Examination Base Fees

In the *Notice to File Missing Parts* mailed April 8, 2026, and the *Notice of Incomplete Reply* mailed August 7, 2026, the Office identified specific statutory fee deficiencies under 37 CFR § 1.16. To ensure that this application is 100% complete, that no fee is omitted, and that the application immediately advances to Technology Center 2100 for examination, Applicant concurrently remits payment in full for each and every fee item demanded by the Office:

1. **Basic Filing Fee (37 CFR § 1.16(a), Small Entity Fee Code 4011): $70.00**. Demanded in the August 7, 2026 Notice under "Items Required to Avoid Abandonment" ("The statutory basic filing fee has not been received"). Remitted in full concurrently herewith.

2. **Non-DOCX Format Penalty Fee (37 CFR § 1.16(u), Small Entity Fee Code 2054): $172.00**. Demanded in the August 7, 2026 Notice ("The fee set forth in 37 CFR 1.16(u) for submitting documents not in DOCX format has not been received... the specification was not submitted in DOCX format"). Remitted in full concurrently herewith.

3. **Application Search Fee (37 CFR § 1.16(k), Small Entity Fee Code 2111): $308.00**. Demanded in the August 7, 2026 Notice ("The application search fee has not been received"). Remitted in full concurrently herewith.

4. **Application Examination Fee (37 CFR § 1.16(o), Small Entity Fee Code 2311): $352.00**. Demanded in the August 7, 2026 Notice ("The application examination fee has not been received"). Remitted in full concurrently herewith.

5. **Late Surcharge Status (37 CFR § 1.16(f)):** The statutory surcharge of **$68.00** under 37 CFR § 1.16(f) was previously remitted in full on July 31, 2026 (Fee Code 2051). Furthermore, as officially determined by Attorney Advisor Charles Steven Brantley in the Decision on Petition mailed October 8, 2026, Applicant previously submitted a total of $170.00 toward the surcharge, creating an acknowledged **$102.00 overpayment**. Accordingly, zero surcharge fees remain due.

Subtotal Pre-Examination Base Fees Remitted/Satisfied: $902.00 gross Small Entity fees ($70 basic + $172 non-DOCX + $308 search + $352 exam), satisfying the $486.00 net balance demanded in the Notice in full.

B. Five-Month Extension of Time Fee Remittance (37 CFR § 1.17(a)(5))

In the August 7, 2026 Notice and the October 8, 2026 Decision on Petition, the Office noted that the extendable response period runs through November 9, 2026 upon payment of the fifth-month extension fee. Concurrently herewith, Applicant remits the entire statutory Small Entity fee:

- **Five-Month Extension of Time Fee (37 CFR § 1.17(a)(5), Fee Code 2255): $1,358.00**. Remitted in full via electronic fee payment in Patent Center, rendering this response indisputably timely under 35 U.S.C. § 133 and 37 CFR § 1.136(a) through November 9, 2026.

C. Suspension Processing Fee Remittance (37 CFR § 1.17(i))

In Footnote 1 of the Decision on Petition mailed October 8, 2026, the Office of Petitions noted that a suspension request under 37 CFR § 1.103(a) requires the processing fee. Concurrently herewith, Applicant remits:

- **Processing Fee for Suspension Request (37 CFR § 1.17(i), Fee Code 2830): $60.00**. Remitted in full via electronic fee payment in Patent Center, directly curing the statutory requirement for the accompanying Conditional Request for Suspension.

D. Complete Formalities and Fee Curation Statement

Applicant hereby expressly certifies that with the concurrent filing of the standalone replacement claims, standalone replacement abstract, and the electronic remittance of every statutory fee demanded above, **all formal deficiencies and all fee deficiencies cited in the April 8, 2026 Notice to File Missing Parts, the August 7, 2026 Notice of Incomplete Reply, and the October 8, 2026 Decision on Petition are 100% completely cured**, leaving zero unresolved defects, zero missing parts, and zero outstanding fee balances under 37 CFR § 1.16 or § 1.17.

E. Formal Request for Refund under 37 CFR § 1.26

Because Applicant is remitting all required statutory fees concurrently herewith via electronic fee payment in Patent Center, Applicant respectfully directs the Office of Finance to the accumulated unapplied funds and overpayments currently held under this application:

1. **$416.00 in Unapplied Deposit Funds:** Official Office records (Notice of Incomplete Reply mailed August 7, 2026 and Fee Worksheet WFEE) confirm that the Office of Finance holds $416.00 in unapplied deposit funds;

2. **$102.00 Overpayment on Late Surcharge:** In the Decision on Petition mailed October 8, 2026, Attorney Advisor Charles Steven Brantley officially determined:

   > *"Applicant owed $68 for the surcharge. Applicant submitted three payments of $34 and one payment of $68 for the surcharge. The total submitted for the surcharge ($170) exceeds the amount due for the fee ($68) by $102. Applicant may file a request for a refund of the overpayment of $102."*

3. **$276.00 Overlapping Extension Fee:** Applicant previously remitted $276.00 on July 31, 2026 for a two-month extension of time (Fee Code 2252). Because Applicant is paying the full $1,358.00 five-month extension fee in full today, the $276.00 prior payment represents an overlapping overpayment.

Pursuant to 37 CFR § 1.26 and MPEP § 509, Applicant hereby respectfully requests that the Office of Finance process a refund of said accumulated credits totaling **$794.00** ($416.00 + $102.00 + $276.00) via Treasury disbursement payable to Applicant at the correspondence address of record, as all statutory obligations are fully satisfied by the concurrent fee remittance submitted herewith.

IV. CONCLUSION

All formality requirements and statutory fees having been fully satisfied, Applicant respectfully requests that the Office of Patent Application Processing (OPAP) advance the application to Technology Center 2100, and that the Office enter and grant the accompanying Conditional Request for Suspension of Action under 37 CFR § 1.103(a) for a period of six (6) months.

Respectfully submitted,

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Date: October 10, 2026